

25SMCV05739 25SMCV05739

County: los-angeles

Division: Civil Law and Motion

Department: M

Hearing date: 2026-07-31

Source URL: https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=SM%20%2CM%2C07%2F31%2F2026

Source SHA-256: f1985d79182c65947b151ac010b465b3aaf12613f0fa00f0573de5227f082f79

Case Number: 25SMCV05739 Hearing Date: July 31, 2026 Dept: M

CASE NAME: Ishaque v. City of Santa Monica, et al.

CASE NO.: 25SMCV05739

MOTION: Demurrer to the First Amended Complaint

HEARING DATE: 7/31/2026

LEGAL STANDARD

A demurrer for

sufficiency tests whether the complaint states a cause of action. (Hahn v. Mirda (2007) 147 Cal.App.4th 740, 747.) When considering demurrers, courts read the allegations liberally and in context. In a demurrer proceeding, the defects must be apparent on the face of the pleading or via proper judicial notice. (Donabedian v. Mercury Ins. Co. (2004) 116 Cal.App.4th 968, 994.) A demurrer tests the pleadings alone and not the evidence or other extrinsic matters. Therefore, it lies only where the defects appear on the face of the pleading or are judicially noticed. (CCP §§ 430.30, 430.70.) At the pleading stage, a plaintiff need only allege ultimate facts sufficient to apprise the defendant of the factual basis for the claim against him. (Semole v. Sansoucie (1972) 28 Cal. App. 3d 714, 721.) A “demurrer does not, however, admit contentions, deductions or conclusions of fact or law alleged in the pleading, or the construction of instruments pleaded, or facts impossible in law.” (S. Shore Land Co. v. Petersen (1964) 226 Cal.App.2d 725, 732, internal citations omitted.)

A special demurrer for

uncertainty is disfavored and will only be sustained where the pleading is so bad that defendant cannot reasonably respond—i.e., cannot reasonably determine what issues must be admitted or denied, or what counts or claims are directed against him/her. (CCP § 430.10(f); *Khoury v. Maly's of Calif., Inc.* (1993) 14 Cal.App.4th 612, 616.) Moreover, even if the pleading is somewhat vague, “ambiguities can be clarified under modern discovery procedures.” (Ibid.)

“Liberality in

permitting amendment is the rule, if a fair opportunity to correct any defect has not been given.” (*Angie M. v. Superior Court* (1995) 37 Cal.App.4th 1217, 1227.) It is an abuse of discretion for the court to deny leave to amend where there is any reasonable possibility that plaintiff can state a good cause of action. (*Goodman v. Kennedy* (1976) 18 Cal.3d 335, 349.) The burden is on plaintiff to show, in what manner, plaintiff can amend the complaint, and how that amendment will change the legal effect of the pleading. (Id.)

ANALYSIS

Defendant the City of Santa Monica demurs to the Second and Third Causes of Action in Plaintiff Brandon Michael Ishaque’s First Amended Complaint (“FAC”).

Second Cause of Action for Negligence (Gov. Code §§ 815.2, 820)

Defendant

argues that the plead facts do not identify that Defendant owed Plaintiff a duty of care, or violated a duty of care, as a private citizen because common law negligence and claims for negligent hiring against a public entity are impermissible under established law.

Government

Code section 815 provides that “[a] public entity is not liable for an injury, whether such injury arises out of an act or omission of the public entity or a public employee or any other person” except as provided by statute. (Govt. Code, § 815(a); see *Hoff v. Vacaville Unified School Dist.* (1998) 19 Cal.4th 925, 932.) “[D]irect tort liability of public entities must be based on a specific statute declaring them to be liable, or at least creating some specific duty of care, and not on the general tort provisions of Civil Code section 1714. Otherwise, the general rule of immunity for public entities would be largely eroded by the routine application of general tort principles.” (Eastburn

v. Regional Fire Protection Authority (2003) 31 Cal.4th 1175, 1183.)

A

public entity is potentially subject to liability under sections 815.2 and 820. Section 820 states that “a public employee is liable for injury caused by his act or omission to the same extent as a private person.” Section 815.2 states a “public entity is liable for injury proximately caused by an act or omission of an employee of the public entity within the scope of his employment if the act or omission would, apart from this section, have given rise to a cause of action against that employee or his personal representative.” Under these Government Code sections, where a legal duty is not created by statute, the question of whether a legal duty exists is analyzed under general principles of tort law. (Hayes v. County of San Diego (2013) 57 Cal.4th 622, 628-629.)

The

FAC arises out of pedestrian collision caused by the allegedly dangerous and defective condition of a crosswalk located at the intersection of 10th Street and Wilshire Boulevard. (FAC ¶ 1.) On November 8, 2024, at approximately 1:00 a.m., Plaintiff was lawfully crossing southbound within the marked crosswalk when he was struck by a westbound vehicle. (Id., ¶¶ 2, 12-15.) Plaintiff was severely injured. (Id., ¶ 22.) The illuminated crosswalk warning lights were not functioning at the time. (Id. ¶¶ 2, 16-17.) Defendant designed, constructed, owned, operated, inspected, and/or maintained the intersection and its pedestrian safety systems, and created and maintained this dangerous condition. (Id., ¶ 3.) The malfunctioning ground lighting system was reported to Defendant multiple times, including but not limited to March 28, 2024, June 2, 2024, June 3, 2024, and June 12, 2024, but was not repaired until November 14, 2024, after Plaintiff was injured. (Id., ¶¶ 18-19.) Defendant failed to properly inspect, maintain, repair, or warn of the hazardous condition despite actual and/or constructive notice of the defects. (Id., ¶ 20.)

The

second cause of action alleges liability against Defendant for negligent hiring, supervision and retention. Defendant allegedly employed, retained, supervised, and/or was otherwise responsible for various employees, agents, engineers, inspectors, maintenance personnel, and supervisory staff who were tasked with the inspection, maintenance, repair, monitoring, and operation of pedestrian safety infrastructure at the intersection of 10th Street and Wilshire Boulevard, including but not limited to the in-road flashing crosswalk warning

light system and associated pedestrian safety features. (FAC ¶ 29.) Defendant owed a duty to exercise reasonable care in the hiring, training, supervision, and retention of its employees responsible for pedestrian safety systems, including ensuring that such employees were competent, properly trained, adequately supervised, and qualified to perform their assigned duties. (Id., ¶ 30.) Defendants breached this duty by negligently hiring, training, supervising, and retaining employees who were unfit, inadequately trained, improperly supervised, and/or incompetent to perform required inspection, maintenance, repair, and safety functions relating to pedestrian warning systems and intersection safety. (Id., ¶ 31.) Defendant knew through the multiple maintenance reports and complaints, that the pedestrian warning system at the intersection of 10th Street and Wilshire Boulevard was malfunctioning and posed a foreseeable risk of serious injury to pedestrians, yet failed to take appropriate corrective or supervisory action. (Id., ¶ 32.) The negligent hiring, training, supervision, and retention of Defendants' employees was a substantial factor in allowing the dangerous condition of public property to persist, including the failure of the in-road flashing crosswalk lights and inadequate pedestrian warnings at night. (Id., ¶ 33.)

Defendant

contends that it cannot be liable for a direct negligent hiring, supervision or retention claim because "a direct claim against a governmental entity asserting negligent hiring and supervision, when not grounded in the breach of a statutorily imposed duty owed by the entity to the injured party, may not be maintained." (*de Villers v. County of San Diego*

(2007)

156 Cal.App.4th 238, 255-256.) Indeed, Plaintiff identifies no special relationship between himself and the City or its supervisory employees. (Id.; *C.A. v. William S. Hart Union High School Dist.* (2012) 53 Cal.4th 861, 879.) Plaintiff does not cite any statutory basis for the alleged duties to maintain the intersection, aside from section 835 which is embraced by a separate cause of action. Section 835 sets forth the exclusive conditions under which a public entity is liable for injuries caused by a dangerous condition of public property. (*Metcalf v. County of San Joaquin* (2008) 42 Cal.4th 1121, 1129; see *Brown v. Poway Unified School Dist.* (1993) 4 Cal.4th 820, 829.) In opposition, Plaintiff cites section 840.2. Again, this section only applies to individual employee's liability under section 835 claims. The second cause of action only pertains to Defendant's allegedly negligent hiring, supervision or retention of an employee. Moreover, Plaintiff does not allege

any of the factual requirements of section 840.2, including that the a dangerous condition was directly attributable wholly or in substantial part to a negligent or wrongful act of any particular employee, or that employee had the authority and responsibility to take adequate measures to protect against the dangerous condition, and he had actual or constructive notice of the dangerous condition.

Additionally,

Plaintiff does not allege several necessary elements of a negligent hiring claim, including specific facts that Defendant's supervisory employees knew or should have known of an employee's unfitness, and the employee's unfitness substantially contributed to Plaintiff's damages. (Federico v. Superior Court (1997) 59 Cal.App.4th 1207, 1210-1211, 1214.)

Accordingly,

the demurrer is SUSTAINED. Leave to amend will only be granted if Plaintiff proffers sufficient facts for amendment in line with the above discussion.

Third

Cause of Action for Negligence (Gov. Code §§ 815.4, 820)

Defendant

attacks the third cause of action on similar grounds. Government Code section 815.4 states: "A public entity is liable for injury proximately caused by a tortious act or omission of an independent contractor of the public entity to the same extent that the public entity would be subject to such liability if it were a private person. Nothing in this section subjects a public entity to liability for the act or omission of an independent contractor if the public entity would not have been liable for the injury had the act or omission been that of an employee of the public entity."

The

third cause of action is premised on Defendant's vicarious liability for an independent contractor's alleged negligence. Doe defendants were independent contractors of the Defendant, and Defendant is vicariously liable for the tortious acts and omissions of the independent contractors. (FAC ¶ 37.) Defendant, by and through their agents, servants, employees, and/or independent contractors, had a non-delegable duty to maintain and/or operate the intersection of 10th Street and Wilshire Boulevard, including but not limited to the in-road flashing crosswalk warning light system and associated pedestrian safety features in the intersection of 10th Street and Wilshire Boulevard in a reasonable and safe

condition to prevent injury or harm to members of the public, including Plaintiff, to avoid foreseeable accidents and to mitigate the potential harm occurring in such foreseeable accidents. (FAC ¶ 38.) Defendants disregarded said duty and allowed, caused, and/or failed to maintain and/or operate in a reasonably safe condition the in-road flashing crosswalk warning light system and associated pedestrian safety features where the collision occurred, to prevent injury or harm to members of the public. (Id., ¶ 39.) As a result, Plaintiff suffered personal injuries. (Id., ¶ 40.)

The

third cause of action suffers from similar defects as the second cause of action. Again, Plaintiff fails to identify any “non-delegable duty to maintain and/or operate the intersection” or a duty owed by the independent contractors to the members of the general public. (FAC ¶ 38.) The third cause seeks to impose vicarious liability for the independent contractor’s failure to maintain a public street, but section 835 sets forth the exclusive circumstances for the City’s liability for such a claim. (Metcalf, supra, 42 Cal.4th at 1129.) Additionally, an independent contractor cannot be liable to an injured party “for not correcting a previously existing hazard.” (Paz v. State of California (2000) 22 Cal.4th 550, 561 [citing Thirion v. Fredrickson & Watson Constr. Co. (1961) 193 Cal.App.2d 299].) The FAC does not allege that an independent contractor’s negligent performance increased the risk of harm, only that the contractor failed to maintain an admittedly vandalized crosswalk signal. (Id., at 558-559.) Plaintiff also does not allege that he somehow relied on the independent contractor’s performance of repairs to his detriment. (Artiglio v. Corning Inc. (1998) 18 Cal.4th 604, 612-614.)

Accordingly,

the demurrer is SUSTAINED. Leave to amend will only be granted if Plaintiff proffers sufficient facts for amendment in line with the above discussion.